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YEMEN

Human Rights Developments

On September 25 President Ali Abdallah Saleh won the first Yemeni direct presidential election, gaining an officially claimed 96.3 percent of the total vote, and entering his fifth term in office. The president pledged to fight corruption and build a modern state based on law and order. In his first act as he entered his new term he resigned his position as head of the Supreme Judicial Council, a measure that could contribute to judicial independence.

In 1999 human rights problems in Yemen received greater international attention largely because of the high-profile trial of eight British and two Algerian nationals on charges of planning terrorist attacks in the country. The trial in Aden, which resulted in convictions in August and prison terms of between seven months and seven years, highlighted serious shortcomings in the Yemeni justice system, including arbitrary detention, torture, and unfair trials. Women convicted of violating traditional sexual mores were sometimes held in detention beyond the end of their sentence until a male guardian collected them from the prison. Many prisoners and detainees were held in unregulated detention centers operated by tribal leaders or branches of the security forces.

Journalists and opposition political leaders were frequently subjected to detention, assault, or intimidation by security forces and unidentified armed gangs. Newspapers were subjected to closures and arbitrary restrictions in violation of local and international law. Reporters who exposed government corruption were particular targets. In the run-up to presidential elections in September, only one candidate was permitted to stand for elections against incumbent President Ali Abdullah Saleh and he was a member of the president ruling political party.

Many independent and opposition newspapers in Yemen faced prosecution or extrajudicial harassment over the course of the year. Prominent editors and journalists, such as the late Dr. Abdul Aziz al-Saqqaf of the Yemen Times, Hisham Bashraheel of Al-Ayyam, No'aman Qaid Seif of Al-Shoura and Abdel Latif al-Qutbi of Al-Haq were detained and interrogated. Other newspapers which faced prosecution and harassment included Al-Rai al-Aam, Al-Thawri, Al-Wahdawi, and Al-Balagh.

Reporting on high-level government corruption led to some prosecutions. For example, the Yemen Times was accused of slander and spreading lies after publishing articles in November 1998 accusing government officials of channeling international development funds into their own bank accounts. The prosecution was dropped in July following the death of editor Abdul-Aziz al-Saqqaf in a traffic accident. The weekly newspaper, Al-Shoura, the official mouthpiece of the opposition political party, the Union of Yemeni Popular Forces (UYPF), was a particular target of official harassment and restrictions because of its criticism of government policies. Qayed Numan Seif, the editor of Al-Shoura, was detained for two days in February 1999 following the publication of an article entitled, "The President is Asked to Fight Corruption." On February 25, the Ministry of Information issued a decree ordering Al-Shoura shutdown following the publication of a second version of the newspaper by a small group of former UYPF members. This constituted a violation of the press law which forbids the publication of two newspapers with the same title. Al-Shoura journalists and UYPF leaders claimed that the government had financed the publication of the "false" Al-Shoura in order to discredit them and accused the government of engaging in activities aimed at discrediting their opponents and creating a pretext for punitive legal action. From January 1998 Al-Shoura and its journalists were

prosecuted on eleven separate occasions for articles which appeared in the newspaper alleging official corruption or criticizing government policies.

In early March editor of the Aden weekly Al-Ayyam , Hisham Bashraheel and journalist Haitham al-Ghareeb were taken into detention, and the publication of the newspaper was suspended. In May they were brought to trial on charges of "spreading ideas which harm national unity." They were convicted in August and given suspended prison terms after spending five months in detention.

Other sensitive subjects, coverage of which could lead to prosecution, included the deepening security relationship between the Yemeni and U.S. armed forces, and the role of Yemen in the conflict between Eritrea and Ethiopia in the horn of Africa. On March 2, 1999 armed members of the security forces in plainclothes detained sixty-eight-year-old Abdel Latif al-Qutbi, editor-in-chief of the opposition weekly Al-Haq. He had received a summons to appear before the Press and Publications Department of the Office of the Public Prosecutor in connection with an article that had appeared in the newspaper alleging that Yemen would permit U.S. forces to make use of its military facilities on the island of Socotra, in the Arabian Sea. He was detained for three days and criminal procedures were opened against him by the Press and Publications Prosecutor. Al-Qutbi is a leading member of the opposition political party, League of the Sons of Yemen (RAY).

In April, the government appeared to increase its influence over the Yemeni Journalists Syndicate by forcing it to admit hundreds of new members from the armed forces on the grounds that they were military journalists and war correspondents. The official armed services newspaper, 26 September regularly denounced independent journalists and editors as "traitors" and "foreign agents."

Harassment of the independent press was not limited to threats of legal action and prosecutions. Journalists and editors complained of being threatened and intimidated by members of the security forces and at least eight journalists have been beaten up by unidentified attackers alleged to be linked to the authorities. On May 10, four masked men attacked Saif al-Hadheri, the editor of Al-Shumu'a weekly newspaper at his Sana'a home. He was hospitalized as a result of his injuries.

Allegations of torture were at the center of controversy over the trial of eight Britons of Yemeni background and two Algerians on charges of conspiracy to commit acts of terrorism on behalf of extremist Islamist groups. The authorities claimed that the group of ten were associated with Islamist militants convicted of kidnapping sixteen western tourists in December 1998, four of whom died when the Yemeni security forces tried to free them from their captors. Six of the ten were detained at the end of December and were brought to trial on January 27. Four more were brought to trial on February 13. The trial took place at hearings over the following six months. While the defendants and their supporters pointed to numerous irregularities in the trial procedures, their main complaint was that the statements made by the defendants to prosecutors had been extracted under torture. On April 5, British Prime Minister Tony Blair called on the Yemeni government to permit an independent doctor to examine the prisoners. A British Home Office pathologist had reported signs of "serious physical ill-treatment" when he met with some of the prisoners in February. On May 6, after carrying out an examination of four of the detainees, a three person medical team, including a Dutch doctor, reported that they "found no evidence of torture" in their examinations. A comprehensive, independent examination of all the prisoners was never carried out and the defendants were convicted on August 9 and sentenced to prison terms ranging from seven months to seven years.

In contrast to this general trend of inaction in the face of torture, on June 1 Mawheet Primary Court convicted police officer Major Ali Shouaibi of torturing to death an eighteen-year-old criminal suspect, Mohammed Kowkabani. The testimony at the officer's trial brought to light a horrific series of coercive measures, including beating with cudgels and immersion in water, suffered by the prisoner. Major Shouaibi was sentenced to ten years' imprisonment and ordered to pay \$19,000 compensation (diyah) to the victim's family. Two other police officers also received prison terms.

Yemen continued to be plagued by tribal and inter-communal violence, which the state seemed powerless to control. Some foreign visitors were kidnapped and held hostage in demand of payment or concessions from the government. For example, on August 20 a married couple employed by the French embassy was kidnapped by tribesmen and held for twelve days before being released. Earlier, in December 1998, four western hostages were killed in a shoot-out between kidnappers and the

security forces. The conflict between the state and armed groups also resulted in political violence, including a bomb blast which killed at least three at a supermarket in the center of the capital, Sana'a, close to the British Embassy in late August.

Yemen continued to impose the death penalty for crimes of murder and rape. Amnesty International reported that a presidential decree in August 1998 extended the death penalty "to any person who heads a group which engages in kidnapping (or) theft of public or private property by use of force." Most executions were carried out in public and by a firing squad. The bodies of two men executed for murder and rape in Sana'a in August were strung up at the city's entrance as a deterrent.

The arbitrary detentions of women convicted of "moral" offenses for indefinite periods under the Yemeni penal code violated article 15(1) of the Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW), to which Yemen was a party. The government continued to detain female prisoners beyond their sentences until they were collected by a male guardian.

Yemen showed leadership in the Middle East in the movement to ban antipersonnel landmines. It was one of three Middle Eastern countries to become a state party to the Mine Ban Treaty, along with Jordan and Qatar. According to the annual report of 1999 of the International Campaign To Ban Landmines, Yemen signed the treaty on December 4, 1997 and ratified it on September 1 1998. It attended Vienna and Brussels preparatory meetings, endorsed the pro-treaty Brussels Declaration in June 1997, was a full participant in treaty negotiations in Oslo in September 1997, and voted in favor of pro-ban U.N. General Assembly Resolutions in 1996, 1997, and 1998.

In November 1997, the Yemeni Mines Awareness Committee organized a Regional Seminar on Landmines with Radda Barnen (Swedish Save the Children), sponsored by the United Nations Development Programme (UNDP) and the United Nations Children's Fund (UNICEF) and hosted by the President's Office. In December 1998 the committee registered as a separate NGO under the name Yemen Mine Awareness Association, and dealt with mine awareness education in mine infested areas in the south of Yemen and advocacy work on banning landmines. Although Yemen had in past years imported significant numbers of landmines, primarily from the Soviet Union as well as Czechoslovakia, Hungary, and Italy, according to the government Yemen has never manufactured or exported antipersonnel mines.

The government limited public access to the internet, using proxy servers to filter and block specified content between the end-user and the Internet.

Defending Human Rights

The Yemeni government permitted international human rights organizations to visit and local human rights groups functioned within the country. However, the freedom of local monitors was impaired by the restrictions on freedom of expression and a climate of intimidation surrounding criticism of government policy. Several groups reported on human rights conditions in Yemen from outside the country. The ICRC was able to conduct visits to official prisons throughout the country, but its inspections did not cover unofficial detention facilities. In March the Supreme Elections Committee (SEC), with the assistance of the International Foundation of Election Systems (IFES), organized a National Colloquium on the Development of Election Administration in Yemen, bringing together governmental and nongovernmental actors to discuss issues such as voter education, election day operations and candidate and ballot issues. In September IFES opened a field office in Sana'a. On June 28, Yemen hosted an eighteen-country international conference of government and opposition delegates from states deemed to be engaged in a transition to democracy.

The Role of the International Community

The highest level U.S. visitor to Yemen was General Anthony Zinni, commander of U.S. forces in the Middle East, whose visits on several occasions indicated the importance of U.S. - Yemeni military relations. Relations with the UK were strained by the kidnapping of British tourists and by irregularities in the trial of eight British nationals on terrorist charges. The trial brought to light links between Islamist opposition groups based in London and violent Islamist groups operating in Yemen.

The British government was embarrassed by the charges against its nationals while faced with an obligation to uphold the rights of its citizens on trial.

In November 1998, the E.U. welcomed the acceptance of the first ruling by the London International Arbitration Committee on the territorial dispute by Yemen and Eritrea over islands in the Red sea in a declaration by the Presidency of the European Union on Yemen/Eritrea. In December the estimated E.U. aid to Yemen for 1998 according to Mr. Ahmed Sofan, Yemeni Minister of Planning and Development, was \$38.1 million.

German Foreign Minister Joschka Fischer in a press conference in February commended Yemeni officials and other parties for their efforts to release German hostages and said the recent abductions of Germans in Yemen would not affect ties between the two countries. The E.U. is one of Yemen's major aid partners. One of the poorest Arab states, Yemen was implementing economic reforms agreed on with the World Bank and the International Monetary Fund as of February 1999, when the E.U. approved a \$14 million aid package to help the state develop its strategic food reserves. In May, the E.U. agreed to provide Yemen with 6.7 million Euro (about \$7 m) to support health sector reform. In an aid project intended to improve treatment, prevention and awareness of malaria, and implement training of specialist staff, the E.U. cleared humanitarian aid worth Euro 800,000. Malaria was one of the country's biggest health problems, affecting up to 60 percent of the population, and particularly afflicting children, pregnant women, and the elderly. The European Community Humanitarian Office (ECHO) managed the project's funds.

In January 1999 the U.N. Committee on the Rights of the Child considered Yemen's second periodic report and in its concluding observations expressed concern at "the use of physical punishment, including flogging, and torture in detention centres."

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